

Works of Diego de Simancas — On Catholic Institutions tit. XLV On the Pope n. 2 and tit. LVIII On Schismatics entire, with the Annotations of Francesco Castracani; Theory and Practice of Heresy tit. V On Schismatics entire

Diego de Simancas, Bishop of Badajoz and afterwards of Zamora; annotated by Francesco Castracani, Canon of the Cathedral of Ferrara, doctor of both laws, perpetual Vicar of the Priory of S. Romano Martire, and Consultor of the Holy Inquisition — Ferrara, Bernardino Pomatelli, 1692; printed pp. 303, 314, 395–398, 461–462

Translated 1:1 from the diplomatic transcription. Column breaks [col. b], marginal numbers (bold) and marginal lemmata {marg. ...} are kept. Sic-notes follow the text.

BLOCK A — De Cath. Inst. tit. XLV De Papa, n. 2 (printed 303)

On the Pope.

2 We therefore constantly assert, and confess together with the Catholic Church, that all Supreme Pontiffs rightly and justly elected are Vicars of Christ under heaven, and legitimate successors of Peter, Prince of the Apostles, and that they hold the supreme power in the Catholic Church; whom we are bound to comply with in those things which pertain to faith and religion, and to obey in spiritual matters, if only we shall have wished to belong to[1] the sheepfold of[**col. b**] Christ. Which truth has been approved, spread abroad, handed down and consecrated by the Sacred Letters, by the Canons of the Councils, by the decrees of the Fathers, by the opinions of the holy Doctors, and by the unanimous consent of all the orthodox, as many as there ever were, and by the traditions of the universal Church. c. omnes 22. distin.

BLOCK B — Castracani, note 18 on tit. XLV (printed 314)

18 Moreover, since, etc.

The succession of the Supreme Pontiffs from the death of St. Peter down to the present time has always been one; but the manner of succeeding has varied, just as the rites of electing the Supreme Pontiff have been various. Pope Clement was indeed designated by Peter, as Simancas here relates; but he, having refused the Pontificate, did not ascend to the Chair of Peter until after the death of Linus and Cletus. After Clement, the right of electing the Roman Pontiff lay with the Roman Clergy, in which the People more than once interposed itself. This authority Odoacer, the Arian king of the Heruli, afterwards usurped to himself, and Theodoric the Goth, King of Italy; and following their

example the Eastern Emperors likewise usurped the same to themselves; but, the Supreme Pontiffs justly resisting, they afterwards gave it up, so that in the Roman Council Symmachus decreed that all things touching the election of the Supreme Pontiff were for the future to be observed after the manner of the elders. Stephen IV, in another Roman Council, established that no one could be created Pontiff out of any other order except a Deacon or a Cardinal Priest, and this in order that schisms and scandals might be avoided. Gregory X, in the Council of Lyons, assigned the form concerning the rites to be observed in the election of the Supreme Pontiff, namely concerning the conclave of the Cardinals, etc.; for concerning the three forms of electing, namely of Scrutiny, of Compromise and of Inspiration, Innocent III had earlier issued a decree in a General Council, as is had in *c. Quia propter 42. extr. de Elect.* Today, by the constitution of Gregory XV, the election of the Supreme Pontiff is made only by secret scrutiny, with two thirds of the votes of the Most Eminent Cardinals present in the Conclave concurring; and already six Supreme Pontiffs have been elected by this rite of election, namely Urban VIII, Innocent X, Alexander VII, Clement IX and X, and Innocent XI, a Pontiff of admirable piety, whom may God deign long to preserve unto His own glory and the exaltation of Holy Church. See *c. ubi periculum de elect. in 6. & Baron. ad annos 69. 483. 526. 499. & 769. ubi Spondan. nu. 16. 3. & 2.* And note that, although St. Peter is read to have designated[2] Clement as Pontiff, as we granted above, nevertheless no Supreme Pontiff can decree concerning the election of his successor, except by way of exhortation and counsel, in the very manner in which the Prince of the Apostles[col. b] himself also is believed to have done. There exists a Consistorial[3] report of this, concerning which see *Victorellum in addit. ad Ciacconem in vita Pii IV.*

BLOCK C — De Cath. Inst. tit. LVIII De Schismaticis (printed 395–397)

On Schismatics. Title LVIII.

SUMMARY.

- 1 What schism signifies.
- 2 Schism is the sister of heresy.
- 3 How grave an evil schism is.
- 4 There are three kinds of schismatics.
- 5 The second kind of schismatics.
- 6 Schismatics of the second kind differ little from heretics.
- 7 Schismatics are restrained by almost the same penalties as heretics.

8 Catholics ought to flee communication with schismatics.

9 The third kind of schismatics.

10 The law of Theodosius and Valentinian concerning schismatics and heretics to be expelled from the communion of Catholics.

11 Christ in many places commands us to be one.

12 The recent heretics are not one, but give themselves over to various sects and opinions.

13 The disagreements of the heretics, and their various opinions among themselves.

14 How just it is to punish heretics.

On Schismatics.

1 SCHISM is a Greek name; in Latin it sounds “a rending”; but among Christians it is an infamous name, signifying an unlawful departure from the unity of the Church. Whence those are called schismatics who wickedly separate themselves from the obedience of the Supreme Pontiff, and depart from the unity of the Catholic Church. c. Schisma 24. qu. 1. Alex. Ales. 2. p. q. 182. Tho. 2. 2. quæst. 39. Joan. Torquem. lib. 4. de Eccl. part. 1. cap. 1.

2 {marg. *Schism the sister of heresy.*} {marg. *Chap. 16.*} Now schism is the sister of heresy, and that not of any sort whatever, but joined to it on both sides. These indeed are those sisters of sinful Jerusalem whom the Prophet Ezekiel mentions, as Origen elegantly explains, saying among other things: *Where there are schisms, there are heresies, there are dissensions; for either schism does not come unaccompanied, or it does not long subsist without a worse companion.* And Blessed Jerome, on Paul’s Epistle to Titus, judges that this is the difference between heresy and schism, that heresy holds a perverse dogma, whereas schism, after a secession from the Bishop, separates from the Church likewise. Which indeed at the outset can in some part be understood as different; but there is no schism that does not fashion for itself some heresy, that it may seem to have withdrawn from the Church rightly. c. inter hæresim 24. quæst. 3. Orige. in Ezech. hom. 9.

3 Schism is the greatest evil, once punished by God himself more severely than par-[col. b]ricide, and more gravely[4] than idolatry, as Optatus, Bishop of Milevis, teaches, lib. 1. against Parmenianus. For Dathan and Abiram, with all their company, {marg. *Num. 16.*} the earth, gaping open, swallowed alive. Korah too, with two hundred and fifty men, an avenging heavenly flame devoured. So greatly was the Lord angered against Israel, because they divided themselves from the House of David and, leaving Jerusalem where that Mosaic Chair was, withdrew into Samaria, that he demolished them and gave them over to plundering, and utterly cast them from his face; for the guilt of such a schism was not such as to merit pardon. *Famine was commanded to the earth*, says

Optatus, and at once it opened its jaws upon the dividers of the people. Within the space of a moment the earth lay open to swallow them down, seized them, and was closed. And lest they should seem to obtain the benefit of a shortened death, since they were not worthy to live, neither was it granted them to die: shut up on a sudden in a Tartarean prison, they were buried before they were dead. I pass over very many things, to avoid tedium, which Irenaeus, Cyprian and many others have committed to writing to the same effect. Num. 16. Irenaeus lib. 4. adversus hæreses cap. 62. Cyprian. tractat. de simplici prælat. Joan. Torquem. lib. 4. de Eccles. part. 1. cap. 5. Faber in Malleo contra Luther. tract. 6. tex. 8. Albert. Campen. in fine. lib. ulti. de Hierarch. Ecclesiast. Conra.[5] Brunus lib. 5. de hæreti. cap. 18.

4 {marg. *A threefold kind of schismatics.*} Now there are three kinds of schismatics. The first, of those who are consummate[6] her-{p. 396}etics; the second, of others who are bordering on heretics; the third, of the orthodox, who are far removed from heretics. The first are they who not only depart from the Supreme Pontiff and from the unity of the Church, but also believe that this is lawful, either thinking that there is no unity in the Catholic Church, or at any rate believing that the Supreme Pastor of the Church is not to be obeyed. Concerning these, however, it is not to the purpose to say more at present, because they are mere heretics, and indeed worse than the rest of the heretics, in proportion as they add a greater division to the Catholic faith, and a greater rending of and offence against ecclesiastical unity. Joan. Torquema. lib. 4. de Eccles. part. 1. cap. 4. Brun. lib. 1. de hæretic. cap. 16. & lib. 1. de sedit. cap. 3.

5 Others are schismatics bordering on heretics, who have not yet fallen into any other heresy, but depart only from the unity of the Church and from the obedience of the Supreme Pontiff; speaking of whom St. Jerome says: *They separate the deceived multitude from the Church of God, and tear away and divide untrained souls; yet they do not do this out of that credulity by which heretics butcher those whom they have deceived, but, remaining within the same rule of faith, they desire to enlarge their own borders and to send down a name of glory to posterity.* Blessed Augustine too, writing against Faustus concerning the same schism, says: *Schism is to be delighted, while holding the same opinions and worshipping by the same rite as the rest, in the dissension of the congregation alone;* and in the book on Faith and the Creed: *Schismatics by their dissensions break away from brotherly charity, although they believe the things which we believe.* With which Cyprian also and others agree. c. denique 7. qu. 1. Hieronym. in episto. Amos. cap. 1.

6 Now these schismatics differ little from heretics; for although they falsely give themselves out to be Christians, yet by the fact itself they openly show that they believe that there is salvation outside the Church; that the Supreme Pontiff is not to be obeyed; that the unity of the Church can be rent; that outside the Church there are true Sacraments; and many other things besides, erroneous, heretical and impious, which indeed follow upon every schism, so that Clement V rightly said that *an inveterate schism is heresy.* Extravag. ad certitudinem de sentent. excom. c. pudenda. c. schisma 24. qu. 1. Joan. Lup. de jure Navarræ par. 5. §. 7.

7 Hence it is that schismatics are to be restrained by almost[*col. b*] the same penalties by which heretics are punished. (a) For they are both excommunicated *ipso jure*, and are deprived of ecclesiastical power and of every dignity, and all their goods are confiscated. c. 2. de Schismat. c. de liguribus 23. distin. c. didicimus 24. q. 1. cap. 1. de schisma lib. 6. Joan. Bern. in pract. cap. 105.

8 Besides, Catholics ought to shun communication with schismatics; and they may justly make war upon them on account of the schism, and Judges both Ecclesiastical and Secular are bound to punish them as heretics, or at any rate as vehemently suspect.

1. But if they return to the unity of the Church with a pure heart, they are to be kindly admitted, the schism first abjured. c. Clericus 24. q. 3. c. quoties 1. q. 7. Alex. Ales. 2. par. qu. 182. Joan. Torquema. lib. 4. de Eccles. par. 1. cap. 8. & 15. Joan. Lup. de jure Navarræ par. 4.

9 There are others who are schismatics, who are neither heretics nor incur any penalty of law, because they have a just excuse and are without fault. These are they who, led by probable or invincible ignorance, think someone to be Supreme Pontiff who has not been rightly elected; which is wont to happen when, on account of an ambiguous election, two or more contend for the Pontificate, and some in good faith hold one of them for the true Pontiff, who nevertheless has not been justly elected. For although we are bound to believe that the true successor of Peter is the supreme Prince of the Catholic Church, we are nevertheless not bound by the same faith to believe that this or that man is the true successor of Peter, when it is doubted with great probability whether he was rightly elected. For those things do not pertain to the Catholic faith which depend on a doubtful fact, but those which arise from certain right. See Gersonem, tract. de modo habendi se tempore schismatis, & iterum sermo. de Angel. p. 2. Joan. Torquemada lib. 4. de Ecclesi. par. 1. cap. 14. Franc. Picum lib. de fide, theoremate 17. Alvarum Pelagium lib. 1. de planctu Ecclesiæ articu. 65. Alfons. lib. 1. adversus hæreses cap. 9. Jacobatium lib. 7. de concilio art. 1.

10 There stands in the Theodosian Code, under the title concerning those who contend about religion, a law of Theodosius and Valentinian[7] in these very words: *We command that Manichees, heretics, schismatics, astrologers, and every sect {p. 397} hostile to Catholics be banished from the very sight of the city of Rome, lest men be defiled by the contagion of the presence of criminals. But admonition is to be exercised chiefly upon those who by depraved persuasions withhold themselves from the communion of the venerable Pope, by whose schism the remaining people also is corrupted. To these, a summons having first been issued, we have granted a respite of twenty days, within which, unless they return to the unity of communion, let them be expelled to the hundredth milestone and be worn down by that solitude which they choose.* l. 53.

11 Christ our God, in John chapter 17, earnestly entreats the Father on our behalf that we may be one: *Holy Father, keep them*, he says, *in thy name, that they may be one, as we also are.* And a little after: *And the glory which thou hast given me, I have given to them, that they may be one, as we also are one.* And Paul the Apostle, in the first epistle to the Corinthians chapter 1: *Now I beseech you,*

brethren, by the name of our Lord Jesus Christ, that you all speak the same thing, and that there be no schisms among you; but that you be perfect in the same mind, and in the same judgment; and to the Ephesians chapter 4: I beseech you that you walk worthy of the vocation in which you are called, with all humility and mildness, careful to keep the unity of the Spirit in the bond of peace.

12 {marg. *The confusion and division of the heretics.*} But the new heretics of these times are not one, nor do they have the glory of God, nor do they remain in the same mind and the same judgment, nor do they keep the unity of the Spirit in the bond of peace, nor do they all say the same thing; but there are schisms among them, so that even in one house you may find various faiths, while the husband believes one thing, the wife another, the children another, the household another. Frederick Staphylus indeed enumerates thirty-four sects of Luther's disciples, and Hosius also reported more, lib. 1. adversus Prologomena[8] Brentii, and Lindanus indubitant. Nor can it be doubted that in a short time they will find out and stir up innumerable others; so various, diverse and multiform are they. From this alone[col. b] it is plain that they are all caught up in a great confusion of religion, and are driven by a spirit of darkness.

13 Such are all heretics, as Irenaeus says, lib. 5.: *and those who think that they discover something more beyond the truth, making their way variously and in manifold fashion and feebly, not always holding the same opinions about the same matters, are led about like blind men by the blind.* And Tertullian, lib. de praescip.: *But whence come heretics to be strangers and enemies to the Apostles, if not from a diversity of doctrine, which each one, at his own discretion, has either brought forth or has regard to against the Apostles?* And Athanasius, in the decrees of the Synod of Ephesus: *Men double-minded and unstable in all their ways, and not holding the same judgment, but turning themselves now to this side, now to that, and now indeed approving what they say, but presently blaming what a little before they praised.* And Hilary, lib. 7. de Trini., says that all things of heretics are uncertain and vain; that they disagree with one another, do not say the same things about the same matters, refute themselves, and, not agreeing about the same words, say differing things, yet run together into the same purpose of blasphemy. And Epiphanius, lib. 3.: *when you have questioned some of them, they all assuredly answer differently.* And Augustine, in Epistolam Joan. tract. 7.: *Thou takest thyself away from the unity of the world, thou dividest the Church by schisms, thou tearest in pieces the body of Christ, and the rest to the same effect.*

14 Against these impious fanatics, therefore, who strive to defile all divine things, let the laws rise up with avenging fire. Let there be driven from Spain[9] those pestilent heretics who cast all the ancient discipline which the Holy Spirit taught, which so many ages of our forebears, so great a consent of nations, so many illustrious men flourishing with every praise of holiness and of learning have handed down, out of that true method of governing the Christian Commonwealth into a disturbance of all things and a more than Babylonian confusion.

BLOCK D — Castracani, Annotationes on tit. LVIII (printed 397–398)

ANNOTATIONS.

1 *Schism is a Greek name.*

Note that, although schism sounds “a rending,” it is not on that account to be believed that the Church herself is rent; those therefore are rent, as many as are separated from her unity, but she herself abides unmoved in her unity. Decian. tract. criminal. lib. 5. cap. 60. nu. 4. On this matter of schismatics see D. Thom.[col. b] 2. 2. quæst. 39. D. Bonaventur. 4. sentent. dist. 13. D. Antonin. part. 2. tit. 3. cap. 11. Turrecrem. in summa de Eccles. lib. 4. p. 1. cap. 1. usque ad 15. Azor. Instit. moral. part. 1. lib. 8. cap. 20. Alfons. Castr. adversus hæres. lib. 1. cap. 9. and very many others, whom you may read cited in Farinac. de hæresi quæst. 184. §. 1. num. 1.

{p. 398}

3 *Schism is the greatest evil, etc.*

Note that this doctrine concerning the gravity of schism is not to be understood of schism according to its own species, as though the sin of schism intrinsically included a greater malice than idolatry, infidelity and heresy itself. But it is to be interpreted according to the circumstances; for although there is a greater malice in infidelity and idolatry, which are opposed to God, than in schism, which is opposed to the unity of the Church, nevertheless from the circumstances a schismatic will sometimes be able to sin more gravely^[4] than an idolater or an infidel, for instance either on account of a greater contempt, or on account of a greater danger, etc. Marian. Soccin. Rub. de Schismatic. nu. 10. & sequen. On the atrocity of schism see, among others, Petr. Gregor. sintagm. Iuris lib. 33. cap. 11. nu. 1. Lopez. in addit. ad Diaz. pract. Criminal. Canon. verbo Schismatici cap. 112. vers. & nota.

4 *Now there are three kinds of schismatics, etc.*

In how many ways schismatics are taken in law, see it most learnedly set forth in Farinac. loco qui supra num. 3.

5 *Others are schismatics, etc.*

Note that schism does not always involve an error of the intellect, as is clear in the case of those who believe in the power of the Pope, but, moved by some passion, withdraw themselves from his obedience. See Tolet. lib. 4. de Instruct. Sacerd. cap. 11. num. 2.

[col. b]

7 (a) *For they are both excommunicated ipso jure, etc.*

Understand this whenever their schism has heresy joined to it; for if the schism is without heresy, it must be said otherwise. Farinac. loco supercit. Rub. de Pœna schismat. num. 59.

8 *(b) But to the unity of the Church, etc.*

Note that a penitent schismatic, received into the unity of the Church upon a prior abjuration, nevertheless remains irregular afterwards, and cannot be promoted to ecclesiastical dignities unless the Pope dispense with him. Pegna in addit. ad Eymeric. 2. part. direct. comment. 73. quæst. 48. vers. cognitu dignum. The opinion of Cravetta is rejected.

9 *There are others, etc.*

It is disputed among theologians whether it is certain, with the certitude of faith beneath which falsehood can never lie, that this individual Supreme Pontiff is the true Pontiff. The truer opinion is that which, speaking of the Supreme Pontiff after he has been received by the universal Church, affirms it, which Simancas seems here to confirm, when, asserting that we are not bound to believe, by that same faith by which we believe that the true successor of Peter is the Supreme Prince of the Catholic Church, that this or that man is the true successor of Peter, he adds: *When it is doubted with great probability whether he was rightly elected.* For after the Supreme Pontiff has been received by the unanimous consent of the Church, all doubt about his right election is removed. See Castropal. tract. 4. de Fide disput. 1. punct. 5. §. 2. num. 9.

BLOCK E — Theorice et Praxis, tit. V De Schismaticis (printed 461–462)

On Schismatics. Title V.

SUMMARY.

1 SCHISM, a Greek name, in Latin denotes a rending.

2 Schismatics are of a threefold difference.

3 The Supreme Pontiff is the Vicar of Christ.

4 Under what species of fact schismatics are to be punished, although they hold no heresy.

5 Obstinate schismatics are excommunicated ipso jure.

6 Schismatics returning with their whole heart to the unity of the Church are to be received.

{p. 462}

On Schismatics.

1 SCHISM likewise is a Greek name; in Latin it signifies a rending, and not one of any sort whatever, but an unlawful departure from the unity of the Church. Commonly, moreover, those are called schismatics who separate themselves from the obedience of the Supreme Pontiff, and thereby depart from the unity of the Church. c. schisma. 24. quæst. 1.

2 Now schismatics are of a threefold difference: some are consummate[6] heretics, who not only depart from the Supreme Pontiff, but also believe that this is lawful, and who fashion other heresies for themselves.

Others are akin to heretics, who hold no heresy: concerning whom the divine Augustine writes against the Grammarian, *that schismatics are those holding the same opinions and worshipping by the same rite as the rest; but these are delighted in the dissension of the congregation alone, and separate themselves.* c. denique 7. quæst. 1.

And there are still others who, led by a just ignorance, think someone to be Supreme Pontiff who has not been rightly elected: which is wont to happen when two or more contend for the Pontificate, and the election is ambiguous.

3 For although we are bound to believe that the Supreme Pontiff is the Vicar of Christ,[col. b] we are nevertheless not bound by the same faith to believe that this or that man is Pope, when it is doubted with great probability which of them was the more rightly elected; for those things do not pertain to the Catholic faith which depend on a doubtful fact. And so these men can be free of all fault, and are not truly schismatics.

4 But those schismatics who hold no heresy are nonetheless to be punished as heretics; because by this alone, that they depart from the head, they seem to believe that the unity of the Church can be rent, and that the Supreme Pontiff is not to be obeyed, and other things of that kind, heretical and impious; so that Clement V rightly said that an inveterate schism is heresy. *Extravag. ad certitudinem, de sentent. excommunicatio. c. pudenda. c. schisma 24. quæstio. 1.*

5 Hence it is that obstinate schismatics are excommunicated *ipso jure*; and they are to be deprived of every dignity and power, their goods also being confiscated. c. 2. *de Schism. c. de Liguribus 23. quæst. 5. c. in nomine 23. distinct. c. didicimus 24. quæst. 1. c. 1. de schisma. lib. 6.*

6 But if they return to the unity of the Church with a pure heart, they are to be kindly received, the schism first abjured. c. clericus 24. qu. 3. c. quoties 1. q. 7.

ANNOTATIONS.

See what the Author taught in the Catholic Institutions, tit. 58, and what I noted in the same place at nu. 1 and following.

Sic-notes

1. **ab ovile** (Block A, PDF 319 / printed 303, col. a, last line) — read *ad ovile*. The b is clean and unambiguous under magnification. Translated as though *ad*, “to the sheepfold.”
2. **dessignasse** (Block B, PDF 330 / printed 314, col. a) — read *designasse*; set with double s, and hyphenated *dessignas-* / *se* across the line break. Translated “to have designated.”
3. **Concistorialis** (Block B, PDF 330 / printed 314, col. b) — read *Consistorialis*, “Consistorial.”
4. **gravjus** (Block C, n. 3, PDF 411 / printed 395, col. b; and again Block D, note 3, PDF 414 / printed 398, col. a) — read *gravius*, “more gravely”; the compositor set j for medial i. The descender and the tittle are both clear at 5x.
5. **Conra.** (Block C, n. 3 citation, PDF 411 / printed 395, col. b) — for *Conrad.*, that is, Conrad Braun; the abbreviation is short by one letter. Left in the Latin citation string as printed.
6. **consumati** (Block C, n. 4, PDF 411 / printed 395, col. b; and Block E, n. 2, PDF 478 / printed 462, col. a) — read *consummati*, “consummate”; single m in both places.
7. **Valenti** (Block C, n. 10, PDF 412 / printed 396, col. b) — read *Valentiniani*, which summary entry 10 on printed 395 spells out in full. No abbreviation stroke is present, so this is a short setting rather than *Valentin*. Translated “Valentinian.”
8. **Prologomena** (Block C, n. 12, PDF 413 / printed 397, col. a) — read *Prolegomena*. Left in the Latin citation string as printed.
9. **Hispania** (Block C, n. 14, PDF 413 / printed 397, col. b) — the sense requires the ablative *Hispaniâ*; no accent is printed. Translated “from Spain.”
10. **Iræneus** (Block C, nn. 3 and 13) — for *Irenæus*, spelled so consistently in this print; left as printed in the citation string and given as “Irenaeus” in the English prose, and not marked in the text.

Closing note

Fidelity to the canonist’s distinctions has been preferred to English elegance throughout, so the three grades of schismatic keep their exact wording: *hæreticis confines* is “bordering on heretics,” *affines* “akin to heretics,” and the third class remains “the orthodox, who are far removed from heretics.”

Citation strings, marginal lemmata excepted, are left in Latin exactly as printed, including the abbreviated forms and the two sic readings that fall inside them, and *ipso jure* is kept untranslated as a term of art. Scripture is given in the Douay wording wherever Simancas quotes it, and Castracani’s

technical phrase about the certitude of faith is rendered literally, since the whole force of his note 9 rests on the distinction between a doubtful fact and a certain right.